ELIAS BONDE
versus
WINNIE BONDE (NEE CHIMANIKIRE)

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 16 October 2025 and 10 February 2026

Trial - Divorce

S Murambasvina, for the plaintiff
J Gwapera, for the defendant

MAXWELL J:

Plaintiff and Defendant married on the 20th of May 1994 in terms of the then Marriage Act [*Chapter 37*], now the Marriages Act [*Chapter 5:17*]. The marriage was blessed with four children who have since attained majority status. On 11 January 2012, the Plaintiff issued a summons claiming a decree of divorce and ancillary relief. In his declaration, he stated that the marriage between the parties has broken down irretrievably and there are no reasonable prospects of its restoration to a normal relationship. He indicated that during the currency of their relationship, the parties acquired movable and immovable property. He proposed that he be awarded the immovable property and a motor vehicle, while the Defendant gets all the household property. He had also made proposals on the custody of and access to the children who were minors at the time the summons was issued. However, the issue of custody and access is not relevant anymore as the children are now adults.

Defendant gave notice of appearance to defend. In her plea, she agreed that the marriage relationship had broken down irretrievably, though she gave different reasons for the breakdown. She did not agree with the proposed sharing of the assets of the spouses. She proposed that the house and the motor vehicle be sold and the proceeds be shared equally between them. She also proposed the sharing of the movable assets.

In his replication, Plaintiff agreed to the selling of the house but proposed that the proceeds be shared with him getting 70% and Defendant 30%. He further indicated that he does not require any of the household assets except a wheelbarrow and a headboard.

On 3 September 2012, the parties signed a Deed of Settlement in which they agreed on sharing the movable assets. The parties subsequently held a Joint Pre-Trial conference in which the issues referred to trial involved the distribution of the immovable property, custody of and access to the minor children. By the time the trial was held, the children had attained majority status. The only issue outstanding for trial was what is the fair and equitable distribution of the matrimonial home, Number 1916 Waverly, Kadoma.

Plaintiff testified as follows. He retired from the Ministry of Education, where he was employed as a Headmaster. He testified that whilst still a civil servant, he received information in 1988 that houses were being given to government employees by the Ministry of Local Government. He went and registered. He followed up until he was allocated the house in question in 1995. He confirmed that the house was registered in his name. At the time of the allocation it was a 4 roomed house and they were paying rentals to the municipality. He subsequently paid for the house in 1995 and they added five rooms to have a 9 roomed house.

Defendant was self-employed and contributed indirectly to the acquisition and extension of the house. He proposed that she be awarded 20% of the value of the house. When challenged why he shifted from offering Defendant 30% he indicated that the Defendant has been collecting rentals for 3 rooms and using it for her personal needs. He indicated that he has no capacity to buy the Defendant out of her share. He however is willing to have Defendant buy out his share.

Defendant testified as follows. The parties married traditionally in 1986 and solemnised their union in 1994. The parties occupied the property in issue on a rent-to-buy basis. Its total cost was between $14000, 00 and $15000, 00. They paid instalments between 1993 and 1995. After acquiring the property they agreed to extend it. She was engaged in cross-border trading, selling crocheting and tailoring products. After giving birth to a set of twins she was unable to continue with the cross-border activities. The parties got into farming. She confirmed that she utilises $150 received as rentals towards the upkeep of the children.

Under cross-examination she stated that Plaintiff had financed her cross-border trading for a year. She confirmed that the proceeds were used in a manner agreed to by the parties. She stated that Plaintiff left the matrimonial home after she had applied for and obtained a peace order. She confirmed income and opportunities from the plaintiff's employment as a Headmaster which enabled the parties to get funds which were used for the

extension of the property. She insisted that the Plaintiff should not be awarded any share of the property.

Section 7 of the Matrimonial Causes Act [chapter 5:13] guides the court in deciding what a fair and equitable distribution of matrimonial property is. It is clear from the reading of the papers and the oral evidence given by the parties that the Plaintiff made direct contributions towards the acquisition and extension of the house while the Defendant made indirect contributions. Both parties testified that they agreed on how the income from either party would be utilised during the subsistence of their marriage.

In *Shenje* v *Shenje* 2001 (1) ZLR 160, it is stated that the legislative intent and the objective of the courts is more weighted in favour of ensuring that the parties' needs are met rather than that their contributions are recouped.

Section 7 (4) of the Matrimonial Causes Act [*Chapter 5:13]* provides that:

> "(4) In making an order in terms of subsection (1) an appropriate court shall have regard to all the circumstances of the case, including the following:-
>
> a) The income earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future.
> b) The financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the foreseeable future;
> c) The standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained;
> d) The age and physical and mental condition of each spouse and child;
> e) The direct or indirect contribution made by each spouse to the family, including contributions made by looking after the home and caring for the family and any other domestic duties;
> f) The value to either of the spouses or to any child of any benefit, including pension or gratuity, which such spouse or child will lose as a result of the dissolution of the marriage;
> g) The duration of the marriage
>
> and in so doing the court shall endeavour as far as is reasonable and practicable and having regard to their conduct, is just to do so, to place the spouses and children in the position they would have been in had a normal marriage relationship continued between the spouses."

Both parties' income-earning capacities have been reduced. Plaintiff retired. Defendant was involved in an accident, which left her unable to continue her tailoring at the time of the trial. The parties' marriage lasted for over 39 years. In *Usayi* v *Usayi* 2003 (1) ZLR 684 ZIYAMBI JA (as she then was) stated that one cannot place a monetary value on the indirect contribution made by a wife and mother who faithfully performed her duties as wife, mother, counsellor, domestic worker, housekeeper, day and night nurse for her husband and children during the duration of the marriage. Four children were born out of this marriage. Apart from the indirect contribution by the Defendant, she was also contributing financially

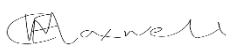
to the welfare of the family through her cross-border and tailoring project. No evidence was adduced to show that either party's contribution was inferior to the other. In *Usayi* v *Usayi* SC22/2024 it is stated that

> "There has to be an obvious and compelling reason for the court's departure from the overarching principle of equality in the sharing of property.
> Section 26 of the Constitution of Zimbabwe requires that there be
> "Equality of rights and obligations of spouses during marriage and at its dissolution…."

I am not persuaded that there are any compelling reasons for departing from the principle of equality in this case. The parties are entitled to share the immovable property equally. Though the Defendant did not address the issue of either party buying the other out, I will give her the option as proposed by the Plaintiff.

The following order is appropriate.

1. A decree of divorce be and is hereby granted.
2. The movable property will be shared in terms of the Deed of Settlement signed by the parties on the 3rd of September 2012.
3. Each party be and is hereby awarded 50 % of the property known as Number 1916 Waverly Township, Kadoma.
4. The property will be valued by a valuer appointed by the parties within seven days of this judgement and the parties shall bear the cost of the valuation equally.
5. If the parties fail to agree on a valuer, one will be appointed by the Registrar of the High Court upon request by either party.
6. The Defendant shall have the option to buy the Plaintiff's share within twelve months of receipt of the valuation report, or within such other period as agreed by the parties.
7. In the event that the Defendant fails to buy the Plaintiff's share in terms of paragraph 6 above, the property shall be sold to the best advantage by an estate agent agreed to by the parties or appointed by the Registrar, where the parties fail to agree.
8. The net proceeds of the sale of the house shall be shared equally between the parties.
9. Each party shall bear its own costs.



Messrs Jarvis, Palframan Legal Practitioners, Plaintiff's Legal Practitioners
R. Murambasvina Law Chambers, Defendant's Legal Practitioners.